

ORDER SHEET

**IN THE LAHORE HIGH COURT,
LAHORE**

JUDICIAL DEPARTMENT

Crl. Misc. No.55111-B/2021

Dad Khan

Versus

The State, etc.

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
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27.09.2021 Mr. Asghar Ali Gill, Advocate for the petitioner.
Ms. Amna Parveen, Special Prosecutor Customs.
Mr. Nisar Ahmad Virk, Deputy Prosecutor General.
Naveed Shaukat, Inspector Customs and Imran, ASI.

Dad Khan, petitioner seeks post arrest bail in case F.I.R. No.160 dated 07.06.2021, registered for offence under Sections 2(s) & 16 punishable under Sections 156(1) (77) (85), (89), (92) and 157 & 187 of Customs Act, 1969 read with SRO 5(I)/2021 dated 04.01.2021, at Police Station I&P Branch, Customs Collectorate (E&C) Customs, Lahore.

2. Allegation against the petitioner, in brief, is that when the trailer loaded with container of smuggled goods was signaled to stop, he along with co-accused while armed with their respective weapons came at the spot, attacked the customs staff, started firing to snatch the container of smuggled goods and during the scuffle injured Gulzar Hussain Bhatti, Intelligence Customs Officer.

3. Heard. Record perused.

4. Though the offences punishable under the Customs Act, 1969 applied against the present petitioner do not fall within the prohibitory clause of Section 497 Cr.P.C and in such like cases, grant of bail is a rule yet there are exceptional circumstances available in this

case as according to the prosecution story narrated in the crime report when the trailer bearing registration No.TLH-506 was intercepted by the raiding party led by Rana Gulzar Hussain Bhatti, Customs Intelligence Officer, the petitioner along with four co-accused persons intervened to deter and obstruct the officials from performance of their official duty and started beating them. The petitioner as well as his co-accused being armed with firearms also shot repeated straight fires. Multiple blunt weapon injuries during the occurrence were caused to the head of raiding party. When the Medical Officer examined him, his clothes were torn which is evident from the perusal of his medico legal examination certificate. The petitioner was caught red-handed in injured condition by the authorities with in time help of other teams of Customs Department. Mobile phone of the injured officer was also snatched. Pistol, crime weapon and empties of bullets shot by the petitioner were taken into possession there and then which *prima faice* establishes the allegation of assault by the petitioner upon the Government officials and connects the petitioner with the alleged offences. Such violent, aggressive and desperate purported conduct of the petitioner in the circumstances, disentitles him to the grant of post arrest bail. No *mala fide* on the part of the complainant, the recovery witnesses and the injured Customs Intelligence Officer against the petitioner could be surfaced during the arguments. Hence this petition is dismissed. However, keeping in view the abovementioned circumstances of this case the investigation agency is directed to submit report under Section 173 Cr.P.C against the petitioner immediately without wasting any more time if not already done and after submission of the same to the learned trial court it

shall be proceeded with swiftly for expeditious conclusion of the trial in the shortest possible time. Earliest submission of complete or interim challan to the learned court shall be reported to the Director Customs concerned.

(Syed Shahbaz Ali Rizvi)
Judge

APPROVED FOR REPORTING

Judge

****Mukhtar****